

Court No. - 19

Case :- WRIT - C No. - 12096 of 2015

Petitioner :- Kanpur Electricity Supply Company (Kesco) & Another

Respondent :- Presiding Officer Permanent Lok Adalat & Another

Counsel for Petitioner :- Dr. Suman Kumar Yadav

Hon'ble Shri Narayan Shukla,J.

Heard Dr. Suman Kumar Yadav, learned counsel for the petitioner as well as learned Standing Counsel.

Issue notice to respondent No.2.

The petitioner has challenged the order dated 6 December 2014 passed by permanent Lok Adalat, Kanpur Nagar. The order impugned has recorded the petitioner's consent to release the electricity connection in favour of the respondent No.2 and accordingly it issued direction to provide new connection after completion of formalities by the respondent No.2.

At this stage the learned counsel for the petitioner submits that it did not give any such consent for a new connection for the same house/ building as if, there is an electricity dues it is not permissible under the law to give a new connection.

In support of his submission he placed the provisions of para 4.1 of Chapter 4 of the Electricity Supply Code 2005, which provides that if there are arrears of electricity dues on a premise a new connection would not be released, to the new applicant or the old consumers on the same premise.

On the strength of the aforesaid provision he submits that the observation made by the permanent Lok Adalat in the order impugned, is against the law.

The matter requires consideration.

List on 18 March 2015.

Order Date :- 26.2.2015

A. K. Singh

(Shri Narayan Shukla, J)